

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
DANNY GARCIA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. DiMARTINO, Tax
Registry No. unknown at the time, P.O. JOHN
SYLVESTER, Tax Registry No. unknown at the time, and
P.O. KEVIN SHERMAN, Tax Registry No. 902414,
P. O. "JOHN DOE" (Tax Registry No.
unknown at this time) employed by The City of New York
and The New York City Police Department in their
official and individual capacity and assigned to the 72nd
Precinct,

Defendants.
-----X

Index No.:

**SUMMONS WITH NOTICE
AND VERIFIED
COMPLAINT**

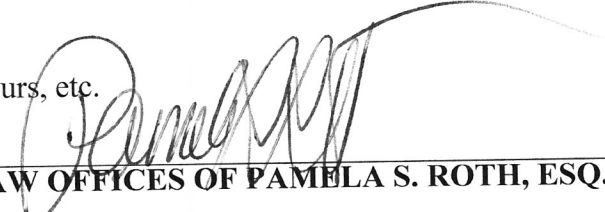
Plaintiff designates Kings
County as the place of trial.
The basis of venue is locus of
occurrence:
County of Kings

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to appear and answer the complaint in their action
and to serve a copy of your answer, or, if the complaint is not served with the summons, to serve
a notice of appearance, on the Plaintiff's attorney(s) within 20 days after the service of the
summons, exclusive of the day of service (or within 30 days after the service is complete if the
summons is not personally delivered to you within the State of New York); and in case of your
failure to appear or answer, judgment will be taken against you by default for the relief
demanded herein.

Dated: New York, New York
June 18, 2017

Yours, etc.



LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.

By:

PAMELA S. ROTH, ESQ.
Attorney for Plaintiff
DANNY GARCIA
Office & P.O. Address
20 Vesey Street, Suite 701
New York, NY 10007
(212) 766-8484

Defendant's address:

Corporation Counsel of the City of New York
Attorneys for The City of New York and
The New York City Police Department
100 Church Street
New York, New York 10007

P.O. DiMartino
72nd Precinct
830 Fourth Avenue
Brooklyn, NY 11232

P.O. Sylvester
72nd Precinct
830 Fourth Avenue
Brooklyn, NY 11232

P.O. Kevin Sherman
72nd Precinct
830 Fourth Avenue
Brooklyn, NY 11232

Notice:

The nature of the action is **PERSONAL INJURY/FALSE ARREST/
UNLAWFUL DETENTION/USE OF EXCESSIVE FORCE**

The relief sought is: **MONETARY DAMAGES**

Upon your failure to appear, judgment will be taken against you by default in a sum that exceeds the jurisdictional limits of all lower courts, with interest from the date of judgment, attorneys' fees and the costs of this action.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DANNY GARCIA,

Plaintiff,

-against-

Index No.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. DiMARTINO, Tax
Registry No. unknown at the time, P.O. JOHN
SYLVESTER, Tax Registry No. unknown at the time, and
P.O. KEVIN SHERMAN, Tax Registry No. 902414,
P. O. "JOHN DOE" (Tax Registry No.
unknown at this time) employed by The City of New York
and The New York City Police Department in their
official and individual capacity and assigned to the 72nd
Precinct,

Defendants.
-----X

Plaintiff, DANNY GARCIA, by his attorneys, LAW OFFICES OF PAMELA S.
ROTH, ESQ. P.C., alleges at all times hereinafter mentioned and upon information and belief
that:

1. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, was
and still is a municipal corporation duly organized and existing under the laws of the State of
New York.

2. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK, its
agents, servants and employees operate, maintained and controlled the Police Department of the
City of New York, including all police officers thereof.

3. At all times hereinafter mentioned, Defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a municipal corporation duly organized and existing under the laws of the State of New York.

4. At all times hereinafter mentioned, and on or prior to the 20th day of June, 2014, Defendant, P.O. DiMARTINO, (Tax Registry No. unknown at this time) was employed by the Defendant, THE CITY OF NEW YORK, as a police officer.

5. At all times hereinafter mentioned, and on or prior to the 20th day of June, 2014, Defendant, P.O. JOHN SYLVESTER, (Tax Registry No. unknown at this time) was employed by the Defendant, THE CITY OF NEW YORK, as a police officer.

6. At all times hereinafter mentioned, and on or prior to the 20th day of June, 2014, Defendant, P.O. KEVIN SHERMAN, (Tax Registry No. 902414) was employed by the Defendant, THE CITY OF NEW YORK, as a police officer.

7. At all times hereinafter mentioned, and on or prior to the 20th day of June, 2014, Defendant POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity, was employed by the Defendant, THE CITY OF NEW YORK, as a police officer.

8. At all times hereinafter mentioned, Defendant, DiMARTINO, was acting within the scope of his employment as a police officer with the Police Department of The City of New York.

9. At all times hereinafter mentioned, Defendant, DiMARTINO, was acting under color of law and authority as a police officer with the Police Department of The City of New York and assigned to the 72nd police command.

10. At all times hereinafter mentioned, Defendant, SYLVESTER, was acting within the scope of his employment as a police officer with the Police Department of The City of New York.

11. At all times hereinafter mentioned, Defendant, SYLVESTER, was acting under color of law and authority as a police officer with the Police Department of The City of New York and assigned to the 72nd police command.

12. At all times hereinafter mentioned, Defendant, SHERMAN, was acting within the scope of his employment as a police officer with the Police Department of The City of New York.

13. At all times hereinafter mentioned, Defendant, SHERMAN, was acting under color of law and authority as a police officer with the Police Department of The City of New York and assigned to the 72nd police command.

14. At all times hereinafter mentioned, Defendant, POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time), was acting within the scope of their employment as a police officer with the Police Department of The City of New York.

15. At all times hereinafter mentioned, Defendants, POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time), was acting under color of law and authority as a police officer with the Police Department of The City of New York.

16. At all times hereinafter mentioned, Defendant, THE CITY OF NEW YORK has established and maintains a Department of Police as a constituent department or agency of the Defendant.

17. Defendant, THE CITY OF NEW YORK, is and was at all times relevant herein a

Municipal entity created and authorized under the laws of the State of New York. It is authorized to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant, THE CITY OF NEW YORK, assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department.

18. At all times hereinafter mentioned Defendant, THE CITY OF NEW YORK, employed P.O. DiMARTINO, P.O. SYLVESTER, P.O. SHERMAN, and a police officer herein named as JOHN DOE.

19. At all relevant times, the individual Defendant were acting pursuant to their authority as NEW YORK CITY POLICE DEPARTMENT employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the NEW YORK CITY POLICE DEPARTMENT.

20. Plaintiff, DANNY GARCIA is thirty-nine (39) years of age and resides alone at 515 Bradford Street, Albany, New York 12206, and all times relevant herein he has been a resident of the United States of America, the State of New York and the County of Albany.

21. On September 15, 2014, and within ninety (90) days of the occurrence complained of hereinafter, Plaintiff, DANNY GARCIA, duly served a Notice of Claim upon the City of New York in the manner and mode required by law.

22. That a hearing has been held pursuant to Section 50(h) of the General Municipal Law on the 13th day of August, 2015.

23. That this action is commenced within one year and ninety days from the date of occurrence complained of herein and that Plaintiff has complied with all conditions precedent applicable to the instant action.

FIRST CAUSE OF ACTION

24. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

25. On June 20, 2014, at approximately 9:00 a.m., while Plaintiff was lawfully present on 52nd Street between 4th Avenue and 5th Avenue, in the City of New York, County of Kings, State of New York, the Defendants, their agents, servants and/or employees wrongfully arrested, imprisoned, detained, assaulted and battered Plaintiff, DANNY GARCIA, without any right or grounds thereof.

26. A truck with sirens came towards Plaintiff, and Defendants jumped out and came towards him, with a gun and said "Get on the ground!"

27. Defendant DiMARTINO took his left hand and slapped and grabbed Plaintiff on his head.

28. Defendant DiMARTINO threw Plaintiff into stones around a tree on the sidewalk.

29. Defendant DiMARTINO started slamming his knees into Plaintiff's back.

30. Defendant DiMARTINO was kicking Plaintiff and said "Motherfucker, you tried to run from us. Where are the drugs?"

31. Plaintiff was handcuffed while he was assaulted.

32. Defendant DiMARTINO grabbed Plaintiff's I.D., pulled him into the street, and pulled his pants down to search him and said "You are a freaking criminal, you degenerate" in front of a crowd.

33. Defendant DiMARTINO saw his *I Love Puerto Rico* keychain and said "You Spics are all the same."

34. Plaintiff told Defendants he was an artist, and then Defendant DiMARTINO asked "What are you a righty? How about this?" and then twisted his wrist and Plaintiff heard something pop.

35. Defendant DiMARTINO laughed at Plaintiff while he was assaulting him, Defendant SYLVESTER did nothing.

36. Defendant DiMARTINO took everything out of Plaintiff's car.

37. Defendants called squad car to pick them up.

38. Plaintiff was assaulted for 45 minutes in the street as a crowd watched.

39. Defendant SYLVESTER kept saying to Plaintiff, "Don't ask me for any favors."

40. Defendant SHERMAN did not intervene to keep plaintiff safe from the assault, battery, and violent attack by defendants DiMARTINO and SYLVESTER.

41. Said detention, arrest, imprisonment, assault, and battery were caused by the Defendants, their agents, servants and/or employees without probable cause and/or justification.

42. Defendants, through their agents, servants and/or employees, acted in bad faith and without probable cause in committing the aforementioned arrest, detention, imprisonment, assault and battery of Plaintiff, DANNY GARCIA.

43. Defendants, their agents, servants and/or employees, intended to confine the Plaintiff, DANNY GARCIA, in that Plaintiff was conscious of the confinement; Plaintiff did not consent to the confinement; and that the confinement was not otherwise privileged.

44. At the time of his unlawful arrest, detention and imprisonment, Plaintiff, DANNY GARCIA, had not committed or attempted to commit any illegal act or crime.

45. At the time of Plaintiff, DANNY GARCIA, unlawful arrest, Defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned arrest and detention were false and without probable cause.

46. Said false arrest and false imprisonment cause Plaintiff, DANNY GARCIA, to suffer physical injuries, emotional and psychological distress, anguish anxiety, fear, humiliation, loss of freedom and damage to his reputation.

47. Defendants DiMARTINO, SYLVESTER, SHERMAN and their partner POLICE OFFICER JOHN DOE, placed him under arrest, never apprising Plaintiff as to why he was being arrested nor the criminal charges they were filing against him.

48. Plaintiff, DANNY GARCIA, was told by members of the New York City Police Department that he was being arrested for a warrant and a suspended license.

49. Plaintiff, DANNY GARCIA, was in police custody, was unlawfully detained and falsely imprisoned for approximately 1 day in the holding cell at the 72nd Precinct.

50. Plaintiff, DANNY GARCIA, was in police custody, was unlawfully detained and falsely imprisoned. The unlawful search and seizure was without due process of law and was done to deprive Plaintiff of his rights as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

51. It is alleged that Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DiMARTINO, SYLVESTER, SHERMAN, and POLICE OFFICER JOHN DOE failed to investigate the facts, and therefore maliciously and intentionally detained, falsely detained, falsely imprisoned, and humiliated Plaintiff, DANNY GARCIA, in violation of his constitutional rights.

52. Plaintiff, DANNY GARCIA, was released from the 72nd Precinct on June 21, 2014.

53. As a direct result of the above Defendants' actions, Plaintiff, DANNY GARCIA, suffered and continues to suffer mental anguish, deprivation of liberty and privacy, humiliation, shame, emotional distress and damage to reputation, some or all of which may be permanent.

54. Plaintiff, DANNY GARCIA, suffered greatly and was emotionally traumatized by this excessive detention and imprisonment.

55. The false criminal arrest of Plaintiff, DANNY GARCIA, and wrongful imprisonment of Plaintiff, DANNY GARCIA, because of Defendants' knowledge of a lack of any legitimate cause or justification, were intentional, malicious, reckless and in bad faith.

56. As a direct and proximate result of Defendants' actions, Plaintiff, DANNY GARCIA, was deprived of rights, privileges and immunities under the Fourth and Fourteenth Amendments to the United States Constitution and the laws of the City and the State of New York.

57. As a result of the foregoing, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN, and POLICE OFFICER "JOHN DOE" employed by The City of New York and The New York

City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CAUSE OF ACTION

58. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

59. On June 20, 2014, at approximately 9:00 a.m., while Plaintiff, DANNY GARCIA, was lawfully present on 52nd Street between 4th Avenue and 5th Avenue, in the City of New York, County of Kings, State of New York, he was assaulted, battered by police officers employed by Defendant, THE CITY OF NEW YORK, including DiMARTINO, SYLVESTER, SHERMAN, and POLICE OFFICER JOHN DOE.

60. On June 20, 2014, at approximately 9:00 a.m., while Plaintiff, DANNY GARCIA, was lawfully present on 52nd Street between 4th Avenue and 5th Avenue, in the city of New York, County of Kings, State of New York, Defendant DiMARTINO, a police officer employed by Defendant, THE CITY OF NEW YORK, intentionally twisted Plaintiff's right wrist.

61. On June 20, 2014, at approximately 9:00 a.m., while Plaintiff, DANNY GARCIA, was lawfully present on 52nd Street between 4th Avenue and 5th Avenue, in the city of New York, County of Kings, State of New York, Defendant SYLVESTER, a police officer employed by Defendant, THE CITY OF NEW YORK, intentionally did nothing to stop the assault on Plaintiff.

62. As a result of the above mentioned unprovoked assault and battery, and intentionally twisting Plaintiff's right wrist, Plaintiff, DANNY GARCIA, was injured, internally

and externally, underwent a surgical procedure, became sick, sore, lame and disabled and was caused to suffer and still suffers severe and permanent injuries, and upon information and belief, will continue to suffer pain and discomfort; and was caused to obtain medical care and attention in an attempt to cure himself of said injuries.

63. As a result of the foregoing, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN, and POLICE OFFICER“JOHN DOE” employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

64. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

65. The actions of Defendants heretofore described constitute an unlawful arrest, unlawful detention, false imprisonment, and assault and battery, all in violation of Plaintiff, DANNY GARCIA's, civil rights.

66. Defendants deprived Plaintiff, DANNY GARCIA of his liberty in violation of his civil and constitutional rights, as set forth in the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

67. Defendants violated the civil and constitutional rights of Plaintiff, DANNY GARCIA, as set forth in the Constitution of the United States Constitution, 42 U.S.C. §1983 and the Constitution of the State of New York.

68. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

69. The supervisors and policy making officers of Defendant, THE CITY OF NEW YORK, and its Police Department, as a matter of policy, have failed to take steps to terminate the above detailed practices and have failed to discipline or otherwise properly supervise the individuals engaged in such practices.

70. Defendant, THE CITY OF NEW YORK, and its Police Department, has failed to properly or effectively train its employees with regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

71. Defendant, THE CITY OF NEW YORK, and its Police Department, has sanctioned the above described policy and practices through its deliberate indifference to the effect of said policy upon the constitutional and civil rights of Plaintiff, DANNY GARCIA, and others similarly situated.

72. That Defendants' motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

73. As a result of the foregoing, Plaintiff, DANNY GARCIA, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

74. As a result of the foregoing, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN,

and POLICE OFFICER“JOHN DOE” employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CAUSE OF ACTION

75. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

76. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including Defendants, DiMARTINO, SYLVESTER, SHERMAN and POLICE OFFICER JOHN DOE with knowledge that said police officers lacked the experience to be employed by the aforementioned Defendant, and therefore, were unfit to be police officers.

77. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including Defendants, DiMARTINO, SYLVESTER, SHERMAN and POLICE OFFICER JOHN DOE with knowledge that said police officers lacked the department to be employed by the aforementioned Defendant, and were, therefore, unfit to be police officers.

78. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including Defendants, DiMARTINO, SYLVESTER, SHERMAN and POLICE OFFICER JOHN DOE with knowledge that said police officers lacked the experience to be employed by the aforementioned Defendant, and therefore, were unfit to be police officers.

79. Defendant, THE CITY OF NEW YORK, hired and retained in its employ Police Officers, including Defendants, DiMARTINO, SYLVESTER, SHERMAN and POLICE

OFFICER JOHN DOE with knowledge that said police officers had vicious propensities and were therefore unfit to be police officers.

80. As a result of the foregoing, Plaintiff, DANNY GARCIA, has suffered serious and severe emotional distress, personal injuries and loss to his reputation.

81. As a result of the foregoing, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN, and POLICE OFFICER“JOHN DOE” employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIFTH CAUSE OF ACTION

82. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

83. On June 20, 2014, Defendant, THE CITY OF NEW YORK, through its agents, servants and/or employees, did maliciously cause a criminal prosecution to be commenced against Plaintiff, DANNY GARCIA, by filing an accusatory instrument, without probable cause and in bad faith.

84. Plaintiff had not committed any illegal acts.

85. Plaintiff had not given Defendants, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts hereinafter complained of.

86. Defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed or incomplete.

87. As a result of the foregoing malicious prosecution, Plaintiff, DANNY GARCIA, suffered and continues to suffer, substantial and permanent damages.

88. Said malicious prosecution caused Plaintiff, DANNY GARCIA, to sustain severe personal injuries, permanent injuries requiring surgery, emotional distress, emotional disturbances, humiliation and damage to his reputation, including the stigma of having a criminal record.

89. As a result of the foregoing, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN, and POLICE OFFICER“JOHN DOE” employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SIXTH CAUSE OF ACTION

90. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

91. Defendants, their agents, servants and/or employees negligently, carelessly and recklessly performed their police duties in that they failed to exercise such care in the performance of their police duties as a reasonably prudent police officer would have used under similar circumstances.

92. That the aforementioned occurrences, to wit: the false arrest, detainment, unlawful arrest, unlawful and false imprisonment of Plaintiff, DANNY GARCIA; the assault and battery committed by Defendants against Plaintiff, DANNY GARCIA; the intentional twisting Plaintiff's right wrist thereby causing him physical injury, pain and suffering; the violation of Plaintiff's civil and constitutional rights; the malicious prosecution of Plaintiff, DANNY GARCIA; and the resulting injuries to the mind and body therefrom; were caused solely by reason of the negligence of the Defendants, their agents, servants and/or employees, without any negligence on the part of the Plaintiff, DANNY GARCIA.

93. As a result of the foregoing, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN, and POLICE OFFICER "JOHN DOE" employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SEVENTH CAUSE OF ACTION

94. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

95. Defendants' conduct towards Plaintiff, was so outrageous and shocking that it exceeded all reasonable bounds of decency tolerated by the average member of the community.

96. Defendants' acted with the desire to cause Plaintiff, DANNY GARCIA, mental distress and physical distress and pain or acted under circumstances known to them which made it substantially certain that they would cause such mental and physical distress.

97. Defendants acted with utter disregard of the consequences of their actions.

98. As a result of the foregoing, Plaintiff, DANNY GARCIA, has sustained severe and debilitating emotional and psychological distress, painful physical injuries to his body, anguish, anxiety, fear, humiliation, and soreness.

99. As a result of the foregoing, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN, and POLICE OFFICER "JOHN DOE" employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

**EIGHTH CAUSE OF ACTION
42 U.S.C. § 1983 - FAILURE TO INTERCEDE**

100. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

101. Upon information and belief, Defendant THE CITY OF NEW YORK, through the Defendants P.O. DiMARTINO, P.O. SYLVESTER, P.O. SHERMAN, and POLICE OFFICER "JOHN DOE" (Tax Registry No. unknown at this time) employed by The City of New York and The New York City Police Department in their official and individual capacity

and assigned to the 72nd District Police Precinct, by their conduct and under color of state law, it is believed that these two Defendant officers each had opportunities to intercede on behalf of Plaintiff DANNY GARCIA to prevent the excessive use of force but due to their intentional conduct or deliberate indifference declined or refused to do so.

102. As a direct and proximate result, Plaintiff suffered the injuries and damages described above.

103. As a result of the foregoing, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN, and POLICE OFFICER“JOHN DOE” employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

NINTH CAUSE OF ACTION

104. Plaintiff, DANNY GARCIA, repeats, reiterates and realleges each and every allegation contained in paragraphs above, with the same force and effect as if fully set forth herein.

105. Plaintiff DANNY GARCIA, was subjected to harmful and offensive contact by defendant THE CITY OF NEW YORK, through its agents, servants and employees acting within the scope of their employment, and by the individual police officers present at the scene, which was intended, without plaintiff DANNY GARCIA's consent, and without legal justification or other privilege, and the use of excessive and illegal force used against him without cause.

106. Defendants violated plaintiff's civil rights in contravention of 42 U.S.C. Section 1983 in that such abusive acts were performed by the defendant police officers at the scene in their official capacities and under color of State law, all of which served to deprive plaintiff DANNY GARCIA of his right to life, happiness, liberty, and the protections, rights and privileges of the United States Consitution, the Fourteenth Amendment of the U.S. Constitution and Section 1983 of 42 U.S.C.

THE ITEMS OF DAMAGE OR INJURIES CLAIMED

107. That by reason of the foregoing, Plaintiff, DANNY GARCIA, was severely injured and damaged, sustained personal injuries, bruises, contusions, trauma, mental distress and other injuries; his civil rights were violated and he sustained medical expenses. Plaintiff was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries, and Plaintiff has suffered and in the future will necessarily suffer additional loss of time and earnings from employment; and Plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this occurrence, all to Plaintiff's great damage.

108. Plaintiff DANNY GARCIA suffered a deprivation of his civil rights and liberty, was falsely arrested, falsely imprisoned, the use of excessive and unnecessary force was used against him, beaten, battered, assaulted, humiliated, embarrassed, unlawfully detained, suffered emotional harm, shock, was falsely imprisoned for approximately one (1) night without judicial process, loss of reputation in the community, loss of self esteem, fear and anxiety as a result of this incident.

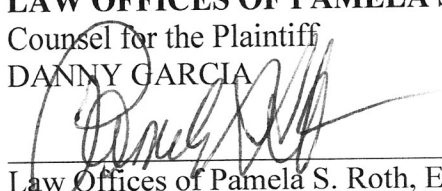
109. Plaintiff DANNY GARCIA felt grave fear and intimidation for his safety and wellbeing by virtue of the intentional, deliberate and malicious acts of the Police Officers from the 72nd District Police Precinct.

110. Plaintiff was deprived of his freedom and liberty.

111. **WHEREFORE**, Plaintiff, DANNY GARCIA, demands judgment against Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. DiMARTINO, P.O. JOHN, SYLVESTER, P.O. KEVIN SHERMAN, and POLICE OFFICER "JOHN DOE" employed by The City of New York and The New York City Police Department in their official and individual capacity and assigned to the 72nd Precinct, were employed by the Defendant, THE CITY OF NEW YORK, as Police Officers in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, and requests the following relief: compensatory and punitive damages in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction; an award of reasonable attorney's fee, costs and disbursements of this action; such other and further relief as this Court may deem just, fair and proper under the circumstances.

Dated: New York, New York
June 20, 2017

Respectfully submitted,
LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.
Counsel for the Plaintiff
DANNY GARCIA

By: 
Law Offices of Pamela S. Roth, Esq.
20 Vesey Street, Suite 701
New York, New York 10007
(212) 766-8484

VERIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF KINGS)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

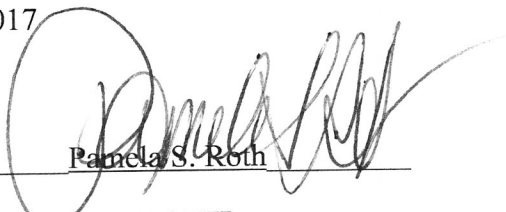
That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I have read the foregoing *Summons and Verified Complaint* and know the contents thereof; the same is true to my own knowledge except as to those matters therein alleged to be on information and belief and as to those matters, I believe them to be true.

The reason this Verification is made by me and not by Plaintiff is that the residence of Plaintiff is outside the County wherein your deponent maintains her office.

The grounds of my belief as to all matters not stated upon my own knowledge are information, books, records, data and correspondence contained in deponent's file and conversation had with the plaintiff herein.

I affirm that the foregoing statements are true under the penalty of perjury.

Dated: June 20, 2017



PAMELA S. ROTH

CERTIFICATION

STATE OF NEW YORK)

) ss.:

COUNTY OF KINGS)

PAMELA S. ROTH, an attorney duly admitted to practice in the Court of the State of New York, states:

That I am a member of **THE LAW OFFICES OF PAMELA S. ROTH, ESQ., P.C.**, attorneys of record for Plaintiff in the within action. I hereby certify, pursuant to 22 NYCRR 130-1.1(a) and after performing an inquiry reasonable under the circumstances, that the within ***Summons and Verified Complaint*** and its respective contentions, are not frivolous as set forth in and defined by 22 NYCRR 130-1.1(c).

Dated: June 20, 2017

Pamela S. Roth

PAMELA S. ROTH

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

INDEX NO. _____

DANNY GARCIA,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. DiMARTINO, Tax
Registry No. unknown at the time, P.O. JOHN
SYLVESTER, Tax Registry No. unknown at the time, and
P.O. KEVIN SHERMAN, Tax Registry No. 902414,
P. O. "JOHN DOE" (Tax Registry No.
unknown at this time) employed by The City of New York
and The New York City Police Department in their
official and individual capacity and assigned to the 72nd
Precinct,

Defendants.

SUMMONS WITH NOTICE AND VERIFIED COMPLAINT

LAW OFFICES OF PAMELA S. ROTH, ESQ. P.C.

Attorney for Plaintiff

DANNY GARCIA

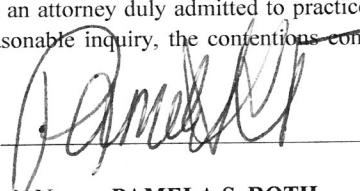
Office & P.O. Address

20 Vesey Street, Suite 701

New York, NY 10007

(212) 766-8484

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney duly admitted to practice law in the State of New York, certifies that, upon information and belief based upon reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: 6/20/17Signature: Print Signer's Name: **PAMELA S. ROTH**

Service of a copy of the within ^ is hereby admitted

Dated,

^

Attorney(s) for ^